

23STCV10146 23STCV10146

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-08

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Case Number: 23STCV10146 Hearing Date: September 8, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

8, 2026 TRIAL

DATE: Not set

CASE: New Commune DTLA LLC v. City Council of the City of Redondo
Beach, et al.

CASE NO.: 23STCV10146

MOTION

TO BE RELIEVED AS COUNSEL

I. INTRODUCTION

On July 22, 2026, Michael W. Shonafelt, counsel for Plaintiff, New Commune DTLA LLC, filed this Motion to be Relieved As Counsel.

The motion is unopposed.

II. LEGAL STANDARD

California Rules of Court, rule 3.1362 (Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as

Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)). ۞۞۞

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The court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. ۞ (See Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) ۞۞۞۞

III. DISCUSSION

Plaintiff's counsel seeks to be relieved as counsel of record for the following reasons: "Withdrawal is necessary in this case based on authorized grounds for withdrawal under Rule of Professional Conduct 1.16 subdivision (b) due to a breakdown of the attorney-client relationship. I am unable to provide additional details in a public filing due to my duty to preserve confidentiality and to avoid prejudice to the Plaintiff." (Form MC-052.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. ۞ (People v. Prince (1968) 268 Cal.App.2d 398, 406.) ۞۞۞

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Upon review, the court finds the Motion does not comply with California Rules of Court, rule 3.1362. Specifically, Counsel has not completed Item 3 of Form MC-052.

IV. CONCLUSION

Accordingly, the Motion to Be Relieved as Counsel is DENIED WITHOUT PREJUDICE. ۞۞

Counsel to give notice.

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Dated: September 8,
2026

Brock T. Hammond

Judge of the Superior Court